

CARBON AND TAX CREDIT MASTER PURCHASE AGREEMENT

This Carbon Credit and Tax Credit Purchase Agreement (the “Agreement”) is entered into and made effective as of [REDACTED], 2026 (the “Effective Date”), by and between:

SELLER

Legal Name of Seller: [REDACTED]

Type of Entity: [REDACTED]

Address: [REDACTED]

Represented by: [REDACTED]

Email: [REDACTED] | Phone: [REDACTED]

BUYER

Legal Name of Buyer: [REDACTED]

Type of Entity: [REDACTED]

Address: [REDACTED]

Represented by: [REDACTED]

Email: [REDACTED] | Phone: [REDACTED]

Seller and Buyer may be referred to individually as a “Party” and collectively as the “Parties”.

RECITALS AND BACKGROUND

WHEREAS, [REDACTED] (“Seller”) engages in the generation, validation, and sale of verified Carbon Credits and Tax Credits through its proprietary carbon capture technology and certified environmental practices;

WHEREAS, the Carbon Credits are validated under the Validation Verification Body (VVB) system through Enviance then certified GCC (Global Climate Council) and the International Carbon Accreditation (ICA) framework [REDACTED];

WHEREAS, with respect to any Tax Credits sold hereunder, Seller represents that such Tax Credits are federal income tax credits eligible for transfer under Section 6418 of the Code and are supported by documentation sufficient to substantiate their eligibility, amount, ownership, qualification, transferability, and general federal income tax usability;

WHEREAS, Seller desires to sell and Buyer desires to purchase certain volumes of Carbon Credits and/or Transferrable Tax Credits, under the terms and conditions set forth herein;

THEREFORE, in consideration of the mutual covenants and agreements herein contained, the Parties agree as follows:

1. DEFINITIONS

1.1 “Applicable Carbon Standard” –means the certification or validation framework under which the Carbon Credits are issued, including the International Carbon Accreditation Framework or any successor or equivalent framework.

1.2 “Business Day” –means any day other than a Saturday, Sunday, or U.S. federal holiday.

1.3 “Carbon Credits” –means verified units representing the removal of carbon dioxide or other greenhouse gases from the atmosphere and their durable sequestration, issued or certified under an Applicable Carbon Standard and supported by verification documentation and registry tracking where applicable.

1.4 “Code” –means the Internal Revenue Code of 1986, as amended, together with applicable Treasury Regulations, IRS guidance, and administrative pronouncements.

1.5 “Currency” –means United States Dollars (USD), unless otherwise agreed to in writing.

1.6 “Delivery” –means, with respect to Carbon Credits, the transfer of Carbon Credits to Buyer’s designated registry account or delivery of applicable serial numbers and certification documentation sufficient to establish Buyer ownership. With respect to Tax Credits, “Delivery” means completion of the applicable transfer mechanics and delivery of the Tax Credit Closing Deliverables sufficient for Buyer to claim the transferred Tax Credits on Buyer’s federal income tax return, subject to the Code and this Agreement.

1.7 “Effective Date” –means the date on which this Agreement becomes legally binding.

1.8 “Forward Credits” –means Carbon Credits produced and delivered within one hundred twenty (120) days of execution of a purchase agreement, accompanied by a Triple Redundancy Guarantee (3x production coverage).

1.9 “Force Majeure” –means any event beyond the reasonable control of either Party, including but not limited to natural disasters, war, terrorism, pandemics, governmental restrictions, or cyber-attacks; provided, however, that Force Majeure

shall not excuse any payment, refund, reimbursement, indemnification, confidentiality, notice, tax documentation, transfer election, or audit cooperation obligation under this Agreement.

1.10 “ISIN Number” –means an International Securities Identification Number, a globally recognized 12-character code used to uniquely identify specific financial securities such as stocks or bonds, but only to the extent applicable to the relevant Carbon Credits or other non-tax-credit instruments.

1.11 “Recapture Event” –means any event that triggers recapture, reduction, forfeiture, or claw back of Tax Credits under Section 45Q(f), 50(a), Section 6418, or other applicable provisions of the Code or Treasury Regulations.

1.12 “Registration Portal” –means the IRS electronic pre-filing registration portal or other IRS-designated process used to register eligible credit property and obtain registration numbers required for a transfer election under Section 6418 of the Code.

1.13 “Registry” –means the applicable voluntary carbon registry or tracking platform used to evidence issuance, ownership, transfer, retirement, or cancellation of Carbon Credits.

1.14 “Tax Credits” –means federal income Tax Credits allowable under the Code, including but not limited to credits under Section 45Q.

1.15 “Transferrable Tax Credits” –means Tax Credits eligible for transfer pursuant to Section 6418 of the Code or any successor provision.

1.16 “Triple Redundancy Guarantee” –means the reserve credit mechanism described in Section 3.

1.17 “Tax Credit Closing Deliverables” means the documentation required to substantiate and effectuate a Tax Credit transfer, including, as applicable, IRS registration numbers, executed transfer election statement, source credit information, substantiation records, Seller certifications, confirmation that no direct pay election has been made, confirmation that the Tax Credits have not been previously transferred, assigned, pledged, or encumbered, and any other deliverables identified in the applicable Transaction Summary.

1.18 “Vintage Credits” means fully verified and registered, previously issued Carbon Credits available for Delivery within the timeframe specified in Section 7.

1.19 “Vintage Tax Credits” means Tax Credits that have been generated, registered, or otherwise become available for Delivery within the timeframe specified in Section 7.1.

1.20 “Forward Tax Credits” means Tax Credits that are expected to be generated, registered, or delivered after execution of this Agreement within the timeframe specified in Section 7.2.

2. PURPOSE AND SCOPE OF AGREEMENT

2.1 This Agreement sets forth the terms and conditions for the sale and transfer of verified voluntary Carbon Credits and/or U.S. federal Transferrable Tax Credits under the Code.

2.2 If a transaction involves Carbon Credits, the provisions of Section 3 shall apply.

2.3 If a transaction involves Tax Credits, the provisions of Section 4 shall apply.

2.4 If both Carbon Credits and Tax Credits are transacted, each respective section shall govern the applicable credits.

2.5 It includes provisions for the issuance of Vintage and Forward Credits, payment terms, Delivery procedures, Triple Redundancy Guarantee, verification, registration, indemnities, and dispute resolution.

2.6 In the event of any inconsistency between provisions applicable to Carbon Credits and provisions applicable to Tax Credits, the Tax Credit-specific provisions shall govern with respect to Tax Credits.

3. CARBON CREDIT TRANSACTIONS

3.1 Vintage Credits: Immediately available and verified Carbon Credits, transferrable upon full payment.

3.2 Forward Credits: Delivered within one hundred twenty (120) days and protected by Triple Redundancy Guarantee.

3.3 Triple Redundancy Guarantee: For each Forward Credit sold, Seller shall generate three (3) Carbon Credits to mitigate Delivery risk. Seller may satisfy Delivery obligations by delivering replacement Carbon Credits of equivalent type and vintage from the Triple Redundancy Reserve. In the event of a disaster affecting one or more issued credits, Buyer shall be entitled to receive a replacement from the reserve credits produced under this guarantee. Seller shall maintain full records of all triple redundancy credits and their respective reserve designations and assign replacements within thirty (30) Business Days of such event.

3.4 Delivery: Delivery shall occur upon transfer of the credits to Buyer or upon Delivery of the applicable serial numbers and certification documentation sufficient to establish Buyer ownership.

3.5 Validation and Certification: Each Carbon Credit is validated through Enviance (VVB) and certified under LCA protocols by [REDACTED] and verified by [REDACTED].

3.6 Use of Credits: Buyer may retire, hold, or resell Carbon Credits subject to the rules of the applicable standards.

3.7 Regulatory Status of Carbon Credits: Seller represents that Carbon Credits are verified under applicable voluntary carbon market standards. Seller does not guarantee such credits will satisfy any specific regulatory, compliance, or governmental program unless expressly stated in writing. Buyer acknowledges that regulatory treatment of Carbon Credits may change and is outside Seller's control.

3.8 Registry Tracking: Each Carbon Credit will be assigned a unique serial number, and where applicable, ISIN Number or registry identification. Seller shall maintain records demonstrating traceability and authenticity of issued credits.

4. TAX CREDIT TRANSACTIONS

4.1 Nature of Transfer: Tax Credits sold under this Agreement shall be transferrable federal income Tax Credits allowable under the Code, including Section 45Q and other applicable provisions.

4.2 Transfer Mechanics: Seller shall register the Tax Credits through the Registration Portal or in accordance with Section 6418 of the Code. Buyer and Seller shall cooperate in completing all required transfer elections and filings necessary to effectuate the transfer; provided that Seller shall remain responsible for Seller-side registration, substantiation, transfer authorization, and filing obligations required to effectuate the transfer of the Tax Credits.

4.3 Completion of Transfer: Transfer of Tax Credits shall be deemed complete only upon completion of all actions required under Section 6418 and applicable Treasury Regulations to effectuate the transfer, including Seller's timely filing of the required transfer election, delivery of all required registration numbers and transfer documentation to Buyer, and Buyer's receipt of documentation reasonably sufficient to claim the transferred Tax Credits on Buyer's federal income tax return.

4.4 No Direct Pay Election: Seller represents that it has not elected direct pay treatment under Section 6417 for the Tax Credits being transferred and shall not make any direct pay election or take any position inconsistent with the transfer of such Tax Credits to Buyer.

4.5 Tax Credit Closing Deliverables: Seller shall deliver the Tax Credit Closing Deliverables and any other documentation reasonably satisfactory to Buyer evidencing the eligibility, validity, existence, amount, qualification, ownership, transferability, and general federal income tax usability of the Tax Credits in accordance with the timing and procedures set forth in Sections 5.7 through 5.10, Section 7, the applicable Transaction Summary, and the applicable escrow agreement.

5. PAYMENT TERMS

5.1 Payment terms may vary depending on the specific transaction and shall be detailed in Schedule F (Transaction Summary).

5.2 Payments shall be made in United States Dollars (USD) unless otherwise agreed in writing.

5.3 Buyer is responsible for all local taxes, transfer fees, or Currency exchange charges unless otherwise agreed in writing.

5.4 Payment shall be made in cash by wire transfer.

5.5 Vintage Credits or Vintage Tax Credits require 100% upfront payment into escrow upon the execution of Agreement unless otherwise provided in Schedule F.

5.6 Forward Credits or Forward Tax Credits require 100% upfront payment into escrow upon execution of this Agreement unless otherwise provided in Schedule F, with 50% released to Seller upon execution of this Agreement and the remaining 50% released to Seller five (5) days prior to Delivery, provided that Seller shall give Buyer and the escrow agent written notice of the scheduled Delivery date not less than ten (10) days before such Delivery date.

5.7 Escrow Release Generally. For any Tax Credit Transaction, Buyer's payment shall be deposited into escrow and released to Seller in accordance with Sections 5.5 and 5.6, the delivery timing set forth in Sections 7.1 and 7.2, the applicable Schedule F (Transaction Summary), and the applicable escrow agreement.

5.8 Vintage Tax Credit Deliverables. For Vintage Tax Credits, Seller shall deliver to Buyer the applicable credit identification numbers, IRS registration numbers, Tax Credit Closing Deliverables, and other documentation reasonably necessary for Buyer to substantiate and claim the Tax Credits in accordance with the delivery timing set forth in Section 7.1.

5.9 Forward Tax Credit Deliverables. For Forward Tax Credits or current-year credits for which IRS registration numbers or final Tax Credit Closing Deliverables are not yet available at the time of payment or escrow release, Seller shall deliver to Buyer all then-available project, production, qualification, ownership, eligibility, amount, and transferability documentation reasonably necessary to evidence the expected generation and transferability of the Tax Credits. Seller shall obtain and deliver the applicable IRS registration numbers and final Tax Credit Closing Deliverables, and complete all required transfer mechanics under Section 6418 of the Code, promptly when available and in accordance with the delivery timing set forth in Section 7.2.

5.10 No Limitation of Seller Obligations. Nothing in Sections 5.7 through 5.9 shall limit Seller's representations, warranties, or obligations expressly set forth elsewhere in this Agreement.

5.11 Any undisputed payment not made when due shall accrue interest at 5% per annum or the maximum rate permitted by law.

5.12 Buyer acknowledges that payments for Tax Credits may not be deductible under Section 6418 of the Code.

6. PURCHASE PRICE, AMOUNT AND CREDIT DETAILS

Buyer acknowledges that the Purchase Price (see "***Schedule F***") reflects the agreed transaction value for the acquisition of the credits and may include third-party fees or arrangements. Seller's sole obligation is to deliver the credits, and Seller has no responsibility for pricing or any third-party arrangements; provided, however, that nothing in this Section limits Seller's representations, warranties, covenants, documentation obligations, cooperation obligations, tax credit transfer obligations, refund obligations, or indemnification obligations under this Agreement.

7. DELIVERY TERMS AND MECHANISM

7.1 Vintage Credits or Vintage Tax Credits: Delivered within 20 Business Days after receipt of full payment.

7.2 Forward Credits or Forward Tax Credits: Delivered within 120 calendar days from the Effective Date.

7.3 Risk of Loss: With respect to Carbon Credits, title and risk of loss transfer upon Delivery to Buyer's designated registry account or delivery of applicable registry documentation sufficient to establish Buyer's ownership. With respect to Tax Credits, Seller shall bear the risk of invalidity, ineligibility, nonexistence, prior transfer, lack of transferability, failure of Section 6418 compliance, and other Seller-responsible matters as provided in Sections 11, 12, 19, and related provisions, notwithstanding any deemed delivery or closing.

7.4 Transfer Confirmation: Buyer shall receive a certificate of ownership or other documentation reasonably sufficient to confirm the applicable transfer, ownership, or claim rights.

8. INVALIDATION OR REPLACEMENT

8.1 If Carbon Credits delivered under this Agreement are subsequently invalidated due to Seller's failure to comply with the Applicable Carbon Standard, Seller shall use commercially reasonable efforts to provide replacement credits of equivalent type and vintage or, if such credits are unavailable, refund the purchase price attributable to such credits.

8.2 This Section 8 applies only to Carbon Credits and shall not limit Seller's obligations with respect to Tax Credits, including Seller's representations, warranties, covenants, cooperation obligations, or indemnification obligations under this Agreement.

9. CERTIFICATION AND VERIFICATION

9.1 All credits sold under this Agreement are subject to third-party verification and certification to the extent applicable to such credits.

9.2 With respect to Carbon Credits, Seller shall provide to Buyer: (a) Verification and Validation Body (VVB) Independent Certification Statement; (b) Project Design Document (PDD); and (c) Lifecycle Assessment (LCA).

9.3 Buyer may request independent audit confirmation, which shall be conducted at Buyer's cost unless otherwise provided in Schedule F or required as a result of Seller's breach of this Agreement.

9.4 With respect to Tax Credits, Seller shall provide all documentation reasonably necessary for Buyer to substantiate the eligibility, validity, amount, ownership, transferability, and general federal income tax usability of the Tax Credits, including applicable IRS registration numbers, transfer election documentation, substantiation records, Seller certifications, and any additional deliverables specified in Schedule F.

10. CARBON CREDIT LEGAL REPRESENTATIONS AND WARRANTIES

10.1 The Seller represents and warrants: (a) It has full authority and legal title to the Carbon Credits. (b) The credits are free of liens, encumbrances, or other third-party claims. (c) They are certified and validated according to applicable voluntary carbon standards. (d) Carbon Credits have not been previously retired or double counted. (e) All documentation provided to Buyer is accurate and complete. (f) Seller complies with applicable environmental and export control laws. (g) Seller possesses all rights necessary to generate and sell the Carbon Credits. (h) Project operations comply with the Applicable Carbon Standard.

10.2 The Buyer represents: (a) Buyer has authority to enter into the Agreement. (b) Funds used for purchase are lawful. (c) Buyer will not use Carbon Credits in misleading environmental claims.

11. TAX CREDITS LEGAL REPRESENTATION AND WARRANTIES

11.1 The Seller represents and warrants that: (a) Tax Credits were properly generated in accordance with the Code and applicable Treasury Regulations. (b) Seller owns the Tax Credits and has the right to transfer them. (c) Credits have not been previously transferred, sold, pledged, assigned, encumbered, or otherwise disposed of. (d) No Recapture Event has occurred prior to transfer. (e) Seller is eligible to transfer credits under Section 6418. (f) Required IRS registration numbers will be provided. (g) The Tax Credits are valid, existing, properly determined, properly substantiated, owned by Seller, free and clear of liens, encumbrances, prior transfers, adverse claims, or competing interests, eligible for transfer under Section 6418 of the Code, and supported by documentation sufficient to substantiate their eligibility, validity, amount, ownership, transferability, and general federal income tax usability. (h) Seller has complied with all applicable requirements to generate, determine, substantiate, and transfer the Tax Credits. (i) All documentation provided to Buyer is true, correct, complete, and not misleading in any material respect. (j) Seller has not received any notice of audit, inquiry, claim, dispute, or proceeding that could reasonably be expected to affect the eligibility, validity, amount, ownership, transferability, or general federal income tax usability of the Tax Credits. (k) No excessive credit transfer has occurred or will occur with respect to the Tax Credits transferred to Buyer. (l) Seller will timely file all required forms, schedules, registrations, and elections required to effectuate the transfer. (m) Seller will not amend any return or take any position inconsistent with Buyer's ownership, transfer, claim, or use of the Tax Credits. (n) Seller will preserve all records necessary to substantiate the Tax Credits for the applicable limitations period and as otherwise required under this Agreement.

11.2 Buyer represents: (a) Buyer is eligible to purchase transferrable credits. (b) Buyer will comply with Section 6418 election requirements applicable to Buyer. (c) Buyer is responsible for determining Buyer's specific tax treatment and utilization of the Tax Credits, except that Seller remains responsible for Seller's express representations regarding the eligibility, validity, amount, transferability, and general federal income tax usability of the Tax Credits. (d) Seller does not provide tax, legal, or accounting advice to Buyer.

12. RECAPTURE ALLOCATION

12.1 Seller bears economic responsibility for Recapture Events to the extent arising from or attributable to Seller's acts, omissions, misrepresentations, pre-transfer conduct, failure to comply with applicable law, or facts, circumstances, or conditions existing before transfer.

12.2 Buyer bears responsibility for Recapture Events arising from Buyer's post-transfer actions, Buyer's tax reporting, Buyer's ownership changes, or other Buyer-specific facts occurring after the transfer of the Tax Credits, except to the extent such Recapture Event is attributable to a matter for which Seller is responsible under this Agreement.

12.3 Seller shall promptly cooperate with Buyer in connection with any IRS inquiry, audit, examination, proposed adjustment, assessment, dispute, or proceeding related to the Tax Credits, including by providing all relevant records within Seller's possession, custody, or control; executing reasonable certifications; making knowledgeable personnel available; and not taking any position inconsistent with Seller's representations and obligations under this Agreement, including Buyer's ownership, transfer, claim, or use of the Tax Credits.

12.4 Seller shall not be responsible for Recapture Events caused by Buyer's tax reporting, ownership changes, or actions taken after the transfer of the Tax Credits, except to the extent such Recapture Event is attributable to a matter for which Seller is responsible under this Agreement.

13. USE OF CREDITS BY BUYER

13.1 With respect to Carbon Credits, Buyer may retire credits for environmental offset, compliance, or ESG reporting.

13.2 With respect to Carbon Credits, Buyer may resell credits, subject to the restrictions imposed by applicable registries and provided the credits have not been retired or double-claimed.

13.3 With respect to Carbon Credits, [REDACTED] disclaims liability for any use that results in regulatory violation, improper marketing, or false sustainability claims.

13.4 With respect to Tax Credits, Buyer may claim the transferred Tax Credits on Buyer's applicable federal income tax return, subject to the Code, Treasury Regulations, applicable IRS guidance, the transfer election documentation, and the terms of this Agreement.

14. ENVIRONMENTAL INTEGRITY CLAUSE

14.1 Buyer agrees not to use Carbon Credits for deceptive advertising, "greenwashing," or environmental fraud.

14.2 Carbon Credits must be used or marketed in accordance with their scientific value and certification standards.

14.3 If Buyer materially misrepresents the use of the Carbon Credits in violation of applicable environmental reporting standards, Seller may suspend future deliveries under this Agreement.

14.4 This Section 14 applies only to Buyer's use, marketing, retirement, resale, or environmental claims relating to Carbon Credits and does not apply to Buyer's claiming or utilization of Tax Credits for federal income tax purposes.

15. CONFIDENTIALITY AND NON-DISCLOSURE

15.1 Each Party agrees to maintain the confidentiality of business terms, pricing, proprietary methodologies, and any information marked as confidential. Confidential information also includes all non-public business terms, pricing, methodologies, project information, tax documentation, transfer documentation, registry information, diligence materials, technical records, customer or counterparty information, and other non-public information disclosed in connection with this Agreement, whether or not marked confidential.

15.2 This obligation shall continue for five (5) years after termination of the Agreement.

15.3 Disclosure may be made only as required by law or mutual written consent; provided that Buyer may disclose relevant information to its tax, legal, accounting, financial, and other professional advisors, and as reasonably necessary to claim, substantiate, defend, audit, report, or comply with requirements applicable to the Tax Credits, so long as such recipients are informed of the confidential nature of the information or are otherwise subject to confidentiality duties.

16. FORCE MAJEURE

16.1 Neither Party shall be held liable for failure or delay due to circumstances beyond its reasonable control, including but not limited to war, riot, terrorism, pandemic, fire, flood, government order, or cyber-attack.

16.2 The affected Party shall notify the other within five (5) Business Days of the occurrence.

16.3 Performance timelines shall be extended for the duration of the event.

16.4 If a Force Majeure event continues for more than one hundred eighty (180) consecutive days, either Party may terminate the affected transaction upon written notice.

16.5 No Force Majeure event shall excuse or delay any payment, refund, reimbursement, indemnification, confidentiality, notice, tax documentation, transfer election, or audit cooperation obligation under this Agreement.

17. COMPLIANCE WITH LAW

17.1 Each Party agrees to comply with all applicable laws, including but not limited to environmental, anti-corruption, and anti-money laundering regulations.

17.2 The Buyer certifies that the purchase of credits is not intended to circumvent sanctions or to support illicit activity.

17.3 The Seller certifies compliance with U.S. export control regulations.

17.4 With respect to Tax Credits, Seller shall comply with all Seller-side requirements under the Code, Treasury Regulations, IRS guidance, registration requirements, transfer election requirements, substantiation requirements, and all other requirements necessary to determine, substantiate, claim, transfer, and preserve the Tax Credits.

18. DISPUTE RESOLUTION AND GOVERNING LAW

18.1 This Agreement shall be governed by and construed in accordance with the laws of the State of Michigan, United States of America, without giving effect to conflict-of-law principles that would require application of the laws of another jurisdiction.

18.2 Any dispute, controversy, or claim arising out of or in relation to this Agreement shall be settled by arbitration in accordance with the UNCITRAL Arbitration Rules.

18.3 The seat and place of arbitration shall be Michigan, United States of America. The arbitration shall be conducted in English before one arbitrator. The decision of the arbitral tribunal shall be final and binding upon the Parties, and judgment may be entered in any court of competent jurisdiction.

18.4 Either Party may seek temporary, preliminary, or permanent injunctive relief in any court of competent jurisdiction to preserve the status quo, protect confidential information, prevent misuse or transfer of credits, compel delivery of required documentation, or prevent irreparable harm, without waiving arbitration.

19. INDEMNIFICATION

19.1 General Indemnification. Each party (the "Indemnifying Party") shall indemnify and hold harmless the other party and its affiliates, members, managers, officers, directors, employees, agents, representatives, successors, and assigns (collectively, the "Indemnified Party") from and against all losses, claims, damages, liabilities, deficiencies, taxes, additions to tax, penalties, interest, costs, and expenses, including reasonable attorneys' fees, accounting fees, tax advisor fees, and other professional fees (collectively, "Losses"), to the extent resulting from: (a) any breach or inaccuracy of any representation, warranty, covenant, certification, statement, form, schedule, document, or agreement made, delivered, or required to be delivered by the Indemnifying Party in connection with this Agreement or the transfer of the Tax Credits; (b) any fraud, gross negligence, willful misconduct, or intentional misrepresentation of the Indemnifying Party; (c) any violation of applicable law by the Indemnifying Party, including, with respect to Seller, any failure to comply with applicable requirements under Sections 45Q or 6418 of the Code, applicable Treasury Regulations, IRS guidance, registration requirements, transfer election requirements, substantiation requirements, or other requirements necessary to determine, substantiate, claim, transfer, or preserve the Tax Credits; and (d) any third-party claim, lien, encumbrance, prior

transfer, competing claim, or other defect in title, ownership, qualification, amount, or transferability of the Tax Credits, in each case to the extent attributable to the Indemnifying Party or, with respect to Seller, the generation, ownership, qualification, transfer, or documentation of the Tax Credits prior to transfer. The Indemnifying Party shall have no obligation to indemnify the Indemnified Party to the extent such Losses are finally determined to have resulted from the Indemnified Party's fraud, gross negligence, willful misconduct, material breach of this Agreement, or failure to comply with applicable law. The indemnification rights in this Section 19.1 are cumulative of, and shall not limit, the indemnification rights set forth in Section 19.2.

19.2 Seller shall indemnify Buyer against Losses to the extent arising from the following:

(a) any disallowance, reduction, recapture, forfeiture, inability to utilize, limitation on use, or other adverse tax consequence with respect to the Tax Credits to the extent directly caused by: (i) Seller's Misrepresentation regarding the eligibility, validity, existence, amount, qualification, transferability, or general federal income tax usability of the Tax Credits; (ii) Seller's lack of authority to transfer the Tax Credits pursuant to Section 6418 of the Code; (iii) Seller's failure to comply with applicable requirements necessary to effectuate such transfer; or (iv) the failure of the Tax Credits, as transferred by Seller to Buyer, to be eligible under applicable federal income tax law to be used against Buyer's federal income tax liabilities attributable to active business income, ordinary income, passive income, and/or capital gains, subject to Buyer's particular tax circumstances, sufficient federal income tax liability, and compliance with applicable reporting, filing, election, and claiming requirements.

For purposes of this Section, "Misrepresentation" means any untrue statement or omission of material fact by Seller regarding the eligibility, validity, existence, amount, qualification, transferability, or general federal income tax usability of the Tax Credits. Seller represents that the Tax Credits constitute federal tax credits eligible for transfer pursuant to Section 6418 of the Code and, subject to Buyer's particular tax circumstances, sufficient federal income tax liability, and compliance with applicable reporting, filing, election, and claiming requirements, are eligible to be used against Buyer's federal income tax liabilities attributable to active business income, ordinary income, passive income, and/or capital gains.

Seller shall have no liability for any disallowance, reduction, recapture, forfeiture, inability to utilize, limitation on use, or other adverse tax consequence arising from: (i) Buyer's or its advisors' reporting positions, tax treatment, filings, elections, or compliance failures; (ii) Buyer's tax posture, tax attributes, limitations unrelated to the general federal income tax usability representation expressly made by Seller in this Section 19.2(a), or insufficient federal income tax liability; or (iii) Buyer's use or attempted use of the Tax Credits in a manner inconsistent with applicable law or the transaction documentation.

Buyer acknowledges that, except for Seller's express representations in this Section 19.2(a), the availability, characterization, timing, and utilization of the Tax Credits with respect to Buyer's particular tax circumstances shall be determined solely by Buyer and its own tax, legal, and accounting advisors. Except as expressly set forth in this Section 19.2(a), Seller is not providing tax, legal, or accounting advice to Buyer and makes no representation or warranty regarding Buyer's ability to claim, utilize, monetize, characterize, or otherwise obtain any particular tax treatment or benefit from the Tax Credits under Buyer's particular circumstances.

If Buyer is unable to claim or utilize all or any portion of the Tax Credits as a result of any matter for which Seller is liable under this Agreement, Seller shall indemnify Buyer for the resulting Losses, including, as applicable, the portion of the Purchase Price attributable to such disallowed, reduced, recaptured, forfeited, or unusable Tax Credits, together with any covered penalties, interest, and reasonable documented out-of-pocket costs, subject to the limitations and exclusions set forth herein.

For the avoidance of doubt, subsections (b) through (e) below are intended to supplement, and not limit, Seller's indemnification obligations under Section 19.2(a).

(b) Reduction in credit amount to the extent directly caused by Seller's failure to comply with applicable requirements, following final resolution of the applicable claim, audit, assessment, adjustment, settlement, closing agreement, administrative proceeding, or judicial proceeding.

(c) Recapture of credits to the extent directly caused by Seller's actions, omissions, Misrepresentation, failure to comply with applicable requirements, or other matters for which Seller is liable under this Section.

(d) IRS penalties and interest to the extent directly caused by Seller's Misrepresentation or failure to comply with applicable requirements, following final resolution of the applicable claim, audit, assessment, adjustment, settlement, closing agreement, administrative proceeding, or judicial proceeding; provided that Seller shall not be liable for penalties or interest accruing after the date Buyer receives written notice from the Internal Revenue Service to the extent such penalties or interest result from Buyer's unreasonable delay, failure to mitigate, or failure to comply with applicable procedures after receiving such notice.

(e) Reimbursement of reasonable, documented out-of-pocket costs, excluding internal costs, overhead, or discretionary expenditures, incurred by Buyer to the extent directly resulting from matters for which Seller is liable under this Section,

following final resolution of the applicable claim, audit, assessment, adjustment, settlement, closing agreement, administrative proceeding, or judicial proceeding.

19.3 No Force Majeure event shall excuse or delay any payment, reimbursement, indemnification, confidentiality, notice, tax documentation, transfer election, or audit cooperation obligation under this Agreement.

19.4 Seller's indemnification obligations under this Section 19, and the related limitations, exclusions, acknowledgments, and reimbursement obligations, shall survive termination, expiration, or closing under this Agreement.

20. LIMITATION OF LIABILITY

20.1 Except for breach of confidentiality, indemnity, or intellectual property rights, neither Party shall be liable to the other for any indirect, incidental, special, punitive, or consequential damages.

20.2 No Party shall be liable for Force Majeure except as otherwise provided in Sections 16.5 and 19.3.

20.3 Total liability under this Agreement shall not exceed the total amount paid under this Agreement by Buyer, except with respect to Seller's indemnification obligations, fraud, willful misconduct, breach of confidentiality, payment obligations, refund obligations, and Seller's obligations relating to the eligibility, validity, existence, amount, qualification, ownership, transferability, Section 6418 compliance, general federal income tax usability, disallowance, reduction, recapture, forfeiture, or limitation on use of the Tax Credits.

21. INSURANCE

21.1 Seller shall maintain general liability, professional liability, or other insurance reasonably appropriate for its Carbon Credit operations.

21.2 Upon request, Seller shall provide certificates of insurance to Buyer.

21.3 If tax credit insurance is obtained for a transaction, the Parties shall specify the insured parties, coverage amount, exclusions, retention, and claims process in the applicable Transaction Summary.

22. AUDIT RIGHTS

22.1 Seller shall provide all documentation reasonably requested in relationship with this Agreement and shall reasonably cooperate with any IRS inquiry or audit, including providing relevant engineering and qualification records, lifecycle assessment data, and other supporting materials within Seller's possession or control.

22.2 Buyer shall have the right to appoint a third-party auditor, once annually, to review the credit inventory and redundancy pool. The audit shall occur during regular business hours with five (5) days' notice.

22.3 In the event of any audit, examination, or inquiry by a taxing authority, relating to the validity, eligibility, or transferability of the Tax Credits, Seller shall provide commercially reasonable cooperation, including access to relevant documentation within its possession or control. Buyer shall retain responsibility for Buyer-specific tax positions, filings, and defense strategy, except to the extent Seller is responsible under this Agreement for the eligibility, validity, existence, amount, qualification, ownership, transferability, Section 6418 compliance, or general federal income tax usability of the Tax Credits.

22.4 Seller shall retain all records necessary to substantiate the Tax Credits, including qualification, calculation, ownership, transferability, registration, and transfer election records, for at least the longer of seven (7) years after transfer or the period required under applicable law.

22.5 Seller shall not destroy, alter, amend, or fail to preserve records reasonably necessary to substantiate the Tax Credits.

23. TERMINATION CLAUSES

23.1 This Agreement shall remain in effect until terminated in accordance with this Section.

23.2 This Agreement may be terminated: (a) By mutual written consent; or (b) By either Party if the other breaches a material obligation and fails to cure such breach within thirty (30) days of written notice.

23.3 In the event of termination, any credits paid for but not delivered shall be refunded within thirty (30) days or reassigned by mutual agreement.

23.4 Termination does not release either Party from previously accrued liability or obligations.

23.5 Buyer cannot return credits to Seller after purchase, except as expressly required in connection with an unwinding, refund, settlement, IRS determination, or indemnification remedy under this Agreement or applicable law.

23.6 Termination shall not limit Buyer's rights or Seller's obligations with respect to any Tax Credits that are invalid, ineligible, improperly transferred, disallowed, reduced, recaptured, forfeited, or otherwise subject to indemnification under this Agreement.

24. SUCCESSORS AND ASSIGNMENT

24.1 This Agreement shall bind and inure to the benefit of the Parties and their respective successors and permitted assigns.

24.2 Neither Party may assign or transfer its rights under this Agreement without the prior written consent of the other Party.

25. NOTICES

25.1 All notices and communications shall be in writing and delivered personally, by certified mail, recognized overnight courier, or email to the addresses listed in this Agreement.

25.2 A notice is deemed received: (a) on Delivery, if delivered by hand; (b) on confirmation of transmission without bounceback, if sent by email; or (c) three (3) Business Days after mailing by certified mail or one (1) Business Day after deposit with a recognized overnight courier.

25.3 Notices of default, termination, indemnity claims, or IRS/tax authority matters must also be sent by overnight courier or certified mail.

26. NON-RELIANCE

Each Party acknowledges that it has not relied upon any representation or statement not expressly set forth in this Agreement. Notwithstanding the foregoing, Buyer may rely on Seller's representations, warranties, certifications, schedules, transfer election documentation, IRS registration information, substantiation records, Tax Credit Closing Deliverables, and written materials delivered by Seller for purposes of substantiating the Tax Credits.

27. ENTIRE AGREEMENT AND AMENDMENTS

27.1 This Agreement, including all attachments and annexes, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior agreements with respect to the subject matter hereof.

27.2 No waiver or amendment shall be effective unless in writing and signed by both Parties.

27.3 Any additional terms in Buyer's purchase orders or documents are hereby rejected unless expressly accepted in writing.

28. SEVERABILITY

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

29. COUNTERPARTS

This Agreement may be executed in counterparts and via electronic signature, each of which shall be deemed an original.

30. ANNEXES AND SCHEDULES

30.1 Schedule A – Validation Certificates (VVB and LCA)

30.2 Schedule B – Carbon Credit Serial Numbers

30.3 Schedule C – Forward Credit Delivery Timeline (if applicable)

30.4 Schedule D – Payment Instructions and Invoicing Schedule (if applicable)

30.5 Schedule E – Forward Credit Production Reserve (if applicable)

30.6 Schedule F – Transaction Summary. Schedule F shall be completed for each Tax Credit Transaction and shall include, as applicable: credit type; Code section; tax year or vintage; Vintage Tax Credits or Forward Tax Credits; amount of credits; price per Carbon and/or Tax Credit; purchase price; payment timing; tax-credit insurance, if any. For any subsequent Tax Credit Transaction between the Parties, the Parties may document such transaction by completing and executing a one-page Schedule F Transaction Summary that refers back to this CARBON AND TAX CREDIT MASTER PURCHASE AGREEMENT executed on [REDACTED], 2026. Upon execution by both Parties, such Schedule F shall be incorporated into and governed by this Agreement, and the Parties shall not be required to execute a new master purchase agreement unless otherwise agreed in writing.

IN WITNESS WHEREOF, the Parties execute this Agreement as of the Effective Date.

SELLER:

[Redacted]

BUYER:

[Redacted]

By: _____

Name: [Redacted]

Title: [Redacted]

Date: _____

By: [Redacted]

Name: [Redacted]

Title: [Redacted]

Date: [Redacted]

SCHEDULE F
TRANSACTION SUMMARY

Term	Details
Credit Type / Code Section	
Price per Carbon Credit (per tCO ₂ e)	\$
Price per Tax Credit (per \$1.00 of credit)	\$
Tax Year or Vintage Year (if applicable)	
Amount of Tax Credits	
Purchase Price	\$
Payment Timing	Within 3 business days of executing this Agreement
Serial Numbers	
ISIN Numbers (if applicable)	
Registry (if applicable under the Applicable Carbon Standard)	
Tax Credit Insurance (if any)	